

Introduction

War does not remove the fundamental rights of civilians. Congolese citizens, refugees, asylum-seekers, internally displaced people, returnees, migrants, women, children, older people, and people with disabilities remain entitled to dignity, humane treatment, safety, and protection.

These protections are supported by the **Constitution of the Democratic Republic of the Congo**, the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights, the African Charter on Human and Peoples' Rights, the Geneva Conventions, the Convention on the Rights of the Child, refugee law, and international humanitarian law.

Article 11 of the DRC Constitution states that all human beings are born free and equal in dignity and rights. The Constitution also protects life, personal liberty, fair trial, freedom of religion, expression, information, assembly, movement, property, health, education, and asylum.

Right to Life and Human Dignity

Article 16 of the DRC Constitution protects the right to life and provides that no one may be subjected to arbitrary deprivation of life.

This protection is supported by:

- Article 3 of the Universal Declaration of Human Rights.
- Article 6 of the International Covenant on Civil and Political Rights.
- Article 4 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Civilians should not be deliberately killed, executed, abducted, disappeared, or targeted during military operations.

Parties to the conflict must distinguish between civilians and military targets. Homes, schools, hospitals, markets, religious buildings, refugee sites, and humanitarian facilities should not be deliberately attacked.

Protection from Torture and Cruel Treatment

Article 61 of the DRC Constitution identifies certain fundamental rights, including protection from torture, as rights that cannot be suspended even during a state of emergency or siege.

No person should be subjected to torture or cruel, inhuman, or degrading treatment. This protection applies to civilians, prisoners, detainees, refugees, asylum-seekers, children, suspected criminals, and people accused of supporting armed groups.

Torture may include beatings, electric shocks, sexual violence, forced confessions, threats against family members, prolonged solitary confinement, humiliation, starvation, and deliberate denial of medical care.

The protection is also supported by:

- Article 5 of the Universal Declaration of Human Rights.
- Article 7 of the International Covenant on Civil and Political Rights.
- The Convention against Torture.
- Common Article 3 of the Geneva Conventions.
- Article 5 of the African Charter on Human and Peoples' Rights.

No military order, emergency declaration, counter-terrorism operation, or political crisis justifies torture.

Protection from Arbitrary Arrest and Detention

Article 17 of the DRC Constitution protects personal liberty. No one should be prosecuted, arrested, or detained except according to law and through procedures established by law.

Article 18 requires authorities to inform an arrested person of the reasons for the arrest and any charges against them. Arrested persons should be brought before a competent authority within the period established by law.

Secret detention, enforced disappearance, detention without charge, denial of legal assistance, and denial of contact with family members are serious violations.

These protections are supported by:

- Article 9 of the Universal Declaration of Human Rights.
- Article 9 of the International Covenant on Civil and Political Rights.
- Article 6 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Right to a Fair Trial

Article 19 of the DRC Constitution guarantees the right to a fair trial and the right to defence. Every person has the right to have their case heard by a competent judge within a reasonable time.

Article 20 provides that court hearings should be public unless restrictions are necessary to protect public order or morality. Article 21 requires judgments to be written, reasoned, publicly announced, and subject to appeal.

Fair-trial rights include information about the accusation, access to legal assistance, adequate time to prepare a defence, the opportunity to challenge evidence, interpretation where necessary, and a decision by an independent and impartial court.

These protections are supported by:

- Articles 10 and 11 of the Universal Declaration of Human Rights.
- Article 14 of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- Common Article 3 of the Geneva Conventions.

Freedom of Movement and Residence

Article 30 of the DRC Constitution recognizes the right to move freely within the national territory, leave the country, and return to it.

Article 32 provides that foreigners legally residing in the DRC enjoy protection for their person and property under national law and international conventions.

Freedom of movement is also supported by:

- Article 13 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Civil and Political Rights.
- Article 12 of the African Charter on Human and Peoples' Rights.

In practice, movement may be restricted by armed checkpoints, military operations, roadblocks, curfews, insecurity, explosive devices, lack of documents, or fear of attack.

Restrictions must be lawful, necessary, proportionate, and applied without discrimination.

Protection from Forced Displacement

Civilians should not be forcibly displaced unless evacuation is necessary for their safety or required by an imperative military reason.

Article 49 of the Fourth Geneva Convention prohibits forcible transfers and deportations of protected civilians. Article 17 of Additional Protocol II prohibits ordering the displacement of civilians for reasons connected with the conflict unless civilian safety or imperative military reasons require it.

The African Union Kampala Convention also requires states to protect people from arbitrary displacement and to provide assistance during displacement.

Displaced people should receive shelter, food, water, healthcare, sanitation, protection, and information. Any return or relocation should be voluntary, safe, informed, and dignified.

Refugee Protection and Asylum

Article 33 of the DRC Constitution recognizes the right to asylum. The DRC may grant asylum to foreign nationals persecuted because of their opinions, beliefs, racial, ethnic, or linguistic origin, or activities supporting democracy and human rights, subject to national security and legal requirements.

Refugee protection is also supported by:

- Article 33 of the 1951 Refugee Convention.
- The 1969 OAU Convention Governing the Specific Aspects of Refugee Problems in Africa.
- Article 3 of the Convention against Torture.
- Article 22 of the Convention on the Rights of the Child.
- Article 12(3) of the African Charter on Human and Peoples' Rights.

A refugee or asylum-seeker should not be returned to a country where they face persecution, torture, serious conflict-related harm, or threats to life and freedom.

Refugees and asylum-seekers should have access to registration information, documentation, fair asylum procedures, protection, and basic humanitarian services.

Rights of Internally Displaced People

Internally displaced people remain entitled to the rights of Congolese citizens and residents. They do not lose their rights because they have moved from one part of the DRC to another.

Their protection is supported by:

- The African Union Kampala Convention.
- The UN Guiding Principles on Internal Displacement.
- Articles 11, 16, 30, 33, and 34 of the DRC Constitution.
- The International Covenant on Civil and Political Rights.

IDPs should have access to food, water, shelter, healthcare, education, identity documents, work, family unity, property, and protection from discrimination.

They should be protected from forced eviction, land seizure, recruitment, trafficking, sexual violence, exploitation, and abuse.

Equality and Non-Discrimination

Article 11 of the DRC Constitution provides that all human beings are born free and equal in dignity and rights.

The Constitution also prohibits discrimination and supports equal protection under the law. Political rights are primarily reserved for Congolese citizens, but all persons within the territory are entitled to basic human rights and legal protection.

Equality is also supported by:

- Articles 1 and 2 of the Universal Declaration of Human Rights.
- Articles 2 and 26 of the International Covenant on Civil and Political Rights.
- Article 2 of the African Charter on Human and Peoples' Rights.
- Article 3 of the Convention on the Rights of the Child.

People should not be denied food, healthcare, education, shelter, employment, protection, or justice because of ethnicity, race, gender, religion, political opinion, nationality, displacement status, disability, poverty, or place of origin.

Freedom of Religion and Belief

Article 22 of the DRC Constitution protects freedom of thought, conscience, and religion.

People have the right to practise, teach, and express their religion or beliefs individually or collectively, subject to respect for the law, public order, morality, and the rights of others.

This protection is supported by:

- Article 18 of the Universal Declaration of Human Rights.
- Article 18 of the International Covenant on Civil and Political Rights.
- Article 8 of the African Charter on Human and Peoples' Rights.

People should not be attacked, forcibly converted, discriminated against, or denied humanitarian assistance because of their religion or beliefs.

Freedom of Expression and Information

Article 23 of the DRC Constitution protects freedom of expression. Article 24 protects the right to information and guarantees freedom of the press, broadcasting, and other forms of communication.

These protections are supported by:

- Article 19 of the Universal Declaration of Human Rights.
- Article 19 of the International Covenant on Civil and Political Rights.
- Article 9 of the African Charter on Human and Peoples' Rights.

Journalists, human-rights defenders, community leaders, humanitarian workers, and civilians should not be threatened, arrested, tortured, or attacked solely because they report abuses, criticize authorities, discuss public affairs, or document humanitarian conditions.

Restrictions must be lawful, necessary, and proportionate. They must not be used to conceal attacks against civilians or suppress peaceful criticism.

Freedom of Peaceful Assembly and Association

Article 25 of the DRC Constitution recognizes freedom of peaceful assembly. Article 26 protects the right to address petitions to public authorities.

These rights are supported by:

- Article 20 of the Universal Declaration of Human Rights.
- Article 21 of the International Covenant on Civil and Political Rights.
- Article 11 of the African Charter on Human and Peoples' Rights.

People should be able to organize peaceful meetings, demonstrations, community initiatives, professional associations, political groups, and humanitarian activities.

Peaceful demonstrators should not be arbitrarily arrested, beaten, shot, disappeared, or subjected to collective punishment.

Rights of Women and Girls

The DRC Constitution protects equality, dignity, personal safety, and freedom from discrimination. It also requires the state to eliminate discrimination against women and protect women from violence.

Women and girls have the right to safety, healthcare, education, work, property, participation in public life, and protection from conflict-related violence.

These protections are supported by:

- The Convention on the Elimination of All Forms of Discrimination against Women.
- The Convention on the Rights of the Child.
- The African Charter on Human and Peoples' Rights.

- The Maputo Protocol on the Rights of Women in Africa.
- UN Security Council resolutions on women, peace, and security.

Conflict increases the risks of rape, sexual slavery, forced marriage, sexual exploitation, trafficking, domestic violence, and abuse at checkpoints.

Survivors are entitled to medical care, psychosocial assistance, protection, and confidential support. Sexual violence is never the survivor's fault.

Rights of Children

Article 41 of the DRC Constitution protects children and requires the state to protect them from mistreatment, exploitation, and violence.

Children are also protected by:

- Articles 6, 19, 22, 32, 34, 35, 38, and 39 of the Convention on the Rights of the Child.
- The Optional Protocol on the involvement of children in armed conflict.
- The African Charter on the Rights and Welfare of the Child.
- International humanitarian law.

Children should be protected from recruitment, use by armed groups, killing, injury, abduction, sexual violence, forced marriage, trafficking, exploitation, and family separation.

Children associated with armed groups should receive protection, rehabilitation, education, medical assistance, psychosocial support, and family-reunification services.

Right to Healthcare

Article 47 of the DRC Constitution recognizes the right to health. The state is required to support access to healthcare and protect public health.

This protection is supported by:

- Article 25 of the Universal Declaration of Human Rights.
- Article 12 of the International Covenant on Economic, Social and Cultural Rights.
- Article 24 of the Convention on the Rights of the Child.
- Article 16 of the African Charter on Human and Peoples' Rights.

Hospitals, clinics, ambulances, medical personnel, and patients must be protected during armed conflict.

People should not be denied emergency treatment because of ethnicity, displacement status, nationality, political opinion, disability, gender, or inability to pay when emergency services are available.

Right to Education

Article 43 of the DRC Constitution recognizes the right to education. Primary education is compulsory and public education should be accessible under conditions established by law.

Children affected by conflict should be protected from attacks on schools, recruitment, forced labour, sexual violence, and discrimination.

Schools should not be occupied or used for military purposes where this places students and teachers at risk.

Right to Food, Water, Shelter, and Sanitation

Conflict-affected people should have access to food, drinking water, shelter, sanitation, healthcare, and protection.

These protections are supported by:

- Article 25 of the Universal Declaration of Human Rights.
- The International Covenant on Economic, Social and Cultural Rights.
- The Convention on the Rights of the Child.
- The Kampala Convention.
- Articles 55 and 56 of the Fourth Geneva Convention, concerning food and medical supplies for civilians in occupied territories.

Humanitarian aid should not be stolen, blocked, diverted, sold unlawfully, or exchanged for political loyalty, military recruitment, money, or sexual favours.

Parties to the conflict should allow and facilitate rapid and unhindered humanitarian relief for civilians in need.

Protection of Humanitarian Workers

Humanitarian workers should be allowed to assist civilians safely, independently, and impartially.

International humanitarian law protects relief personnel and humanitarian operations. Attacks, threats, abductions, extortion, unlawful detention, and obstruction of humanitarian workers can prevent civilians from receiving lifesaving assistance.

Humanitarian organizations should respect confidentiality, neutrality, impartiality, independence, and the dignity of the people they serve.

Protection of Property

Article 34 of the DRC Constitution protects private property. Property may be taken only for a public purpose and through procedures established by law, with fair compensation where applicable.

Property protection is also supported by:

- Article 17 of the Universal Declaration of Human Rights.
- Article 14 of the African Charter on Human and Peoples' Rights.
- Article 46 of the Fourth Geneva Convention.
- The Kampala Convention and UN Guiding Principles on Internal Displacement.

Civilians should not have their homes, land, farms, livestock, shops, or personal possessions unlawfully seized, destroyed, or looted.

Displaced people may lose land records and property documents. Legal assistance, community mediation, official documentation, witness statements, and property records may assist with resolving disputes where safe and available.

Privacy and Personal Information

The DRC Constitution protects human dignity, the home, and personal life. Privacy protection is also supported by:

- Article 12 of the Universal Declaration of Human Rights.
- Article 17 of the International Covenant on Civil and Political Rights.
- Article 16 of the Convention on the Rights of the Child.

Personal information should not be collected, used, or disclosed without a lawful reason or informed consent.

Special protection should be given to the identity and location of survivors of sexual violence, children, refugees, asylum-seekers, journalists, witnesses, detainees, defectors, and people accused of supporting armed groups.

Reporting Abuse and Access to Remedies

Article 150 of the DRC Constitution provides for the independence of the judiciary. Articles 19 and 21 protect fair hearings, reasoned judgments, and the right to appeal.

A person experiencing abuse may seek support from a trusted health facility, protection organization, women-led organization, legal-aid provider, community protection officer, humanitarian agency, court, police service, or appropriate government institution.

Reporting should be voluntary and safe. A person should not be forced to report to the police, publicly identify an attacker, or provide information that may expose them or their family to retaliation.

The right to an effective remedy is also supported by:

- Article 8 of the Universal Declaration of Human Rights.
- Article 2(3) of the International Covenant on Civil and Political Rights.
- Article 7 of the African Charter on Human and Peoples' Rights.
- The UN Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power.